

Ever Closer Union? -Perry Anderson 2021

By Juliana Seewald

Context

- Critical essay on the European Union

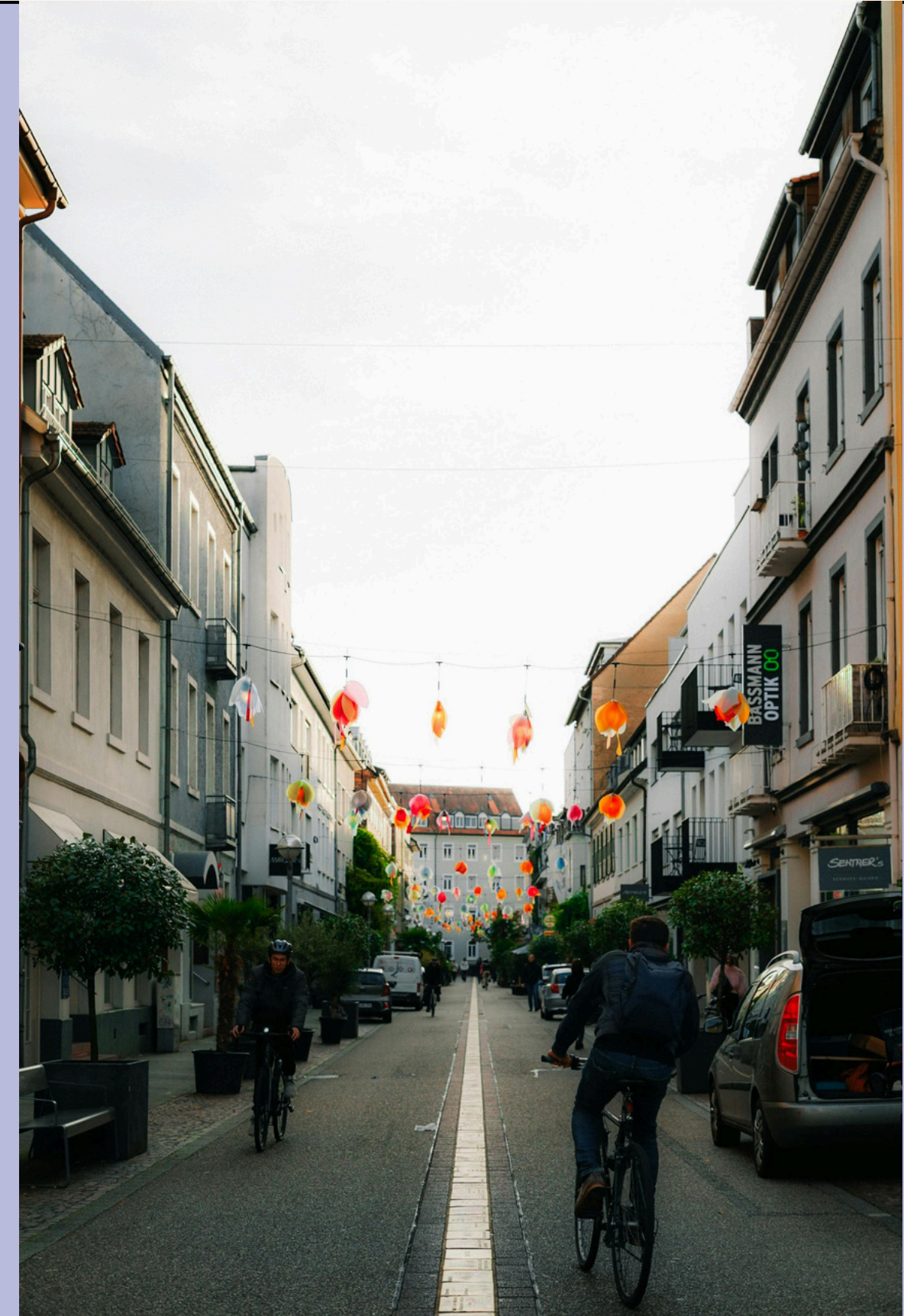
- Challenges the standard, positive story of European integration

- Focusses on power, democracy, and hidden decision-making

- The Union, as we know it today, is composed of five principal institutions: ***the European Commission, the European Court of Justice, the European Parliament, the European Council and the European Central Bank.***

Main Argument

- European integration has been driven less by democratic choice and more by unelected institutions
- Key EU bodies gained power quietly, without clear consent from citizens
- This creates a serious democratic legitimacy problem



“European Integration”: A Misleading Term



- “Integration” sounds neutral and technical



- It replaced the word “federation,” which sounded too radical in the 1950s



- The goal of political union was hidden behind economic language

- Citizens were never clearly asked if they wanted a federal Europe

The European Court of Justice (ECJ)

- Most powerful but least visible EU institution
- Operates in secrecy
- No public dissent, limited transparency
- **The Court became the main driver of integration**

Shocking Origins of the ECJ

- Many had fascist or Nazi pasts

- Some were involved in collaboration, repression, or authoritarian regimes

Anderson's Point:

- The EU was not a clean moral break from Europe's past

- Political loyalty mattered more than democratic values

How the ECJ Gained Power

Landmark Decisions

EU law made superior to national law

This was NOT clearly stated in EU treaties

Why this is Controversial

**Judges created rules governments never
openly agreed to**

**These rulings = almost impossible to
reverse**

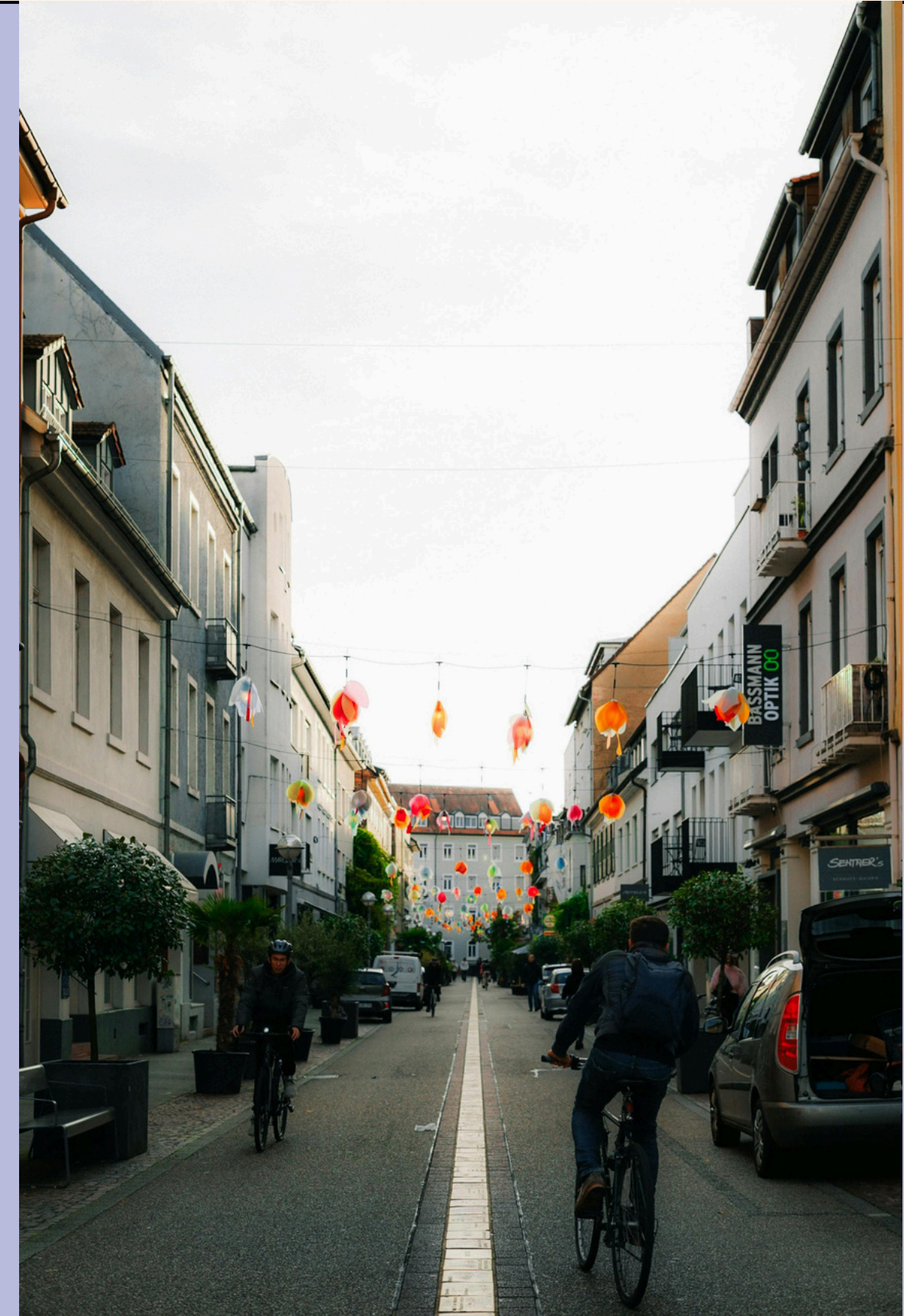
Democracy Problem

Key Issues:

- Judges are unelected
- Decisions are irreversible
- Highly political choices are disguised as technical legal rulings

Result:

- Citizens cannot vote EU policies out
- Politics is removed from democratic debate



From Nation-States to “Member States”

Christopher Bickerton

- Integration shifts countries from nation-states to “member states”
- Governments become less accountable to citizens and more accountable to EU peers

Vertical vs Horizontal Power

- Vertical: governments accountable to voters
- Horizontal: governments accountable to other governments in Brussels



The Political Consequences

The “External Constraint” (*vincolo esterno*)

- National leaders use EU rules to avoid domestic opposition
- Claim their hands are tied by Brussels

Result:

- Unpopular policies (austerity, wage restraint) imposed without voter consent
- Creation of a “hard but hollow state”:
 - Strong against citizens
 - Weakly rooted in society



Important Notes:

- ECJ laid the legal foundations of integration in the 1960s
- EU law supremacy created through case law, not treaties
- After **Cassis de Dijon**, leadership shifted to political institutions
- 1980s–2000s: Court reinforces neoliberal market integration
- **Key outcomes: Single European Act; Viking & Laval cases**

Why the Article Is Important



- Challenges the EU's self-image as democratic and transparent
- Shows how power can grow quietly through law
- Raises questions about legitimacy and accountability

Big Question:

- *Can the EU be democratic without major reform?*



Thank you!